that he would not be able ‘to count upon obtaining a conclusion by the normal methods of procedure within any calculable period’ was plainly against the weight of the evidence before him. He, the governor-general, then wished to call 600 witnesses in any event, but then chose to not call anywhere near that number, whilst still expressing worry that the proceedings were going ‘to drag out to a length which cannot at present be foreseen’ and wanting the charges to be ‘finally adjudicated upon with the least possible delay’. None of these are reasons for an ordinance. One person who saw through all this was none other than Mohammed Ali Jinnah. On 12 September 1929, Jinnah castigated the Governor-General in the Delhi Central Assemby with his excoriating denunciation of his actions: ‘Can you imagine that 600 witnesses are necessary to prove the case against each one of the accused?’ he demanded with incredulity. ‘Well, Sir, it may seem a joke and it may seem that I am making fun of the statement made to this effect’, he continued, ‘but the first impression that one gets is that, when a case cannot be proved without the testimony of 600 witnesses, that is a very bad case.’[3]

Yet, at a stroke the edict decided that ‘all cases pending in the Court of *Rai Sahib Pandit Sri Kishen*, Magistrate of the First Class, Lahore, against any or all of the accused named . . . shall be tried by the Tribunal to be constituted . . .’ [4] and ‘consisting of three persons who at the time of the constitution are Judges’.[5] And yet, adding farce to irony, he decided not only that ‘it shall not be incumbent on the Tribunal to re-call or re-hear any witness who has already given evidence . . .’ and that ‘it may act on any evidence already recorded by or produced before it’,[6] but also that ‘where any accused . . . in any way wilfully conducts himself to the serious prejudice of the trial, *the Tribunal may, at any stage of the trial, dispense with the attendance of such accused* for such period as it may think fit and proceed with the trial in his absence’[7] (emphases added). On this basis, ‘the jurisdiction of the aforesaid Magistrate shall cease’.[8] Even more bizarrely, the special tribunal ‘shall be deemed to be a Court of Session’.[9] But if it was a court of session, one would expect there to be a right of appeal from it to a higher court. Not so. This was after all a trial by ‘privilegium’. However,